



suspected child abuse and neglect, fulfilling the “duty to warn and protect” when there’s a serious threat of harm to self or others, and reporting elder and vulnerable adult abuse.

Understanding the nuances of these requirements is essential, especially as state laws are actively evolving. Definitions, reporting methods, and legal consequences vary significantly by jurisdiction, and recent legislative trends show a significant push to refine these laws. Legislative changes are occurring throughout the country, making it vital for psychologists to pay attention to when their obligation to report is triggered.

Recent legislative trends in child abuse reporting

One notable trend emerging in many states is refining and narrowing the legal definition of child neglect.¹ The goal of many of these legislative changes has been to focus on cases of genuine danger while preventing families from being unnecessarily investigated due to circumstances such as poverty. For instance, California², Kentucky³, and Mississippi⁴ have all passed legislation that specifically excludes a parent’s failure to provide necessities due to poverty from the definition of neglect.

This trend of legislative change extends to how states define the level of risk to a child that warrants intervention. This “risk threshold” is the specific level of danger a child must be in before a mandatory reporter is legally required to make a report. For a psychologist who, in most states, is considered a mandatory reporter, understanding this threshold is crucial since it is the difference between a concerning family situation to one that is legally reportable. Recently, states like Arizona⁵, Arkansas⁶, California⁷, and Texas⁸ have all passed bills that raise the risk threshold, in some cases replacing the language in their laws from a lower standard like “unreasonable risk of harm,” to a higher one, such as “substantial risk of harm.” These changes require more nuanced judgment from mandatory reporters, ensuring that reports are based on a credible threat of significant harm rather than on difficult circumstances such as poverty or differing parenting styles.

New mandatory training requirements

In addition to changing definitions, states are increasingly mandating formal, recurring training for mandatory reporters. These

legislative changes acknowledge the complexity of the reporting process and the need for updated guidance.

For example, in New York, a recent amendment to Social Services Law § 413(5) requires all mandated reporters, including psychologists, to have completed an updated training curriculum by April 1, 2025. This applies even to those who have previously completed the training. The new curriculum includes protocols to reduce implicit bias, strategies for identifying adverse childhood experiences, and guidelines for recognizing abuse during virtual interactions. Connecticut⁹ is another state that requires some mandated reporters, specifically school employees, to complete training within 6 months of being hired and then complete a refresher course every 3 years. For other mandated reporters, including psychologists who are not school employees, the Department of Children and Families makes training available and encourages completion on this schedule, but there is no statutory requirement to do so.¹⁰

These new requirements underscore the evolving nature of a psychologist's ethical and legal responsibilities as mandatory reporters and the importance of staying up to date on these laws.

The evolving role for psychologists

While APA's Ethics Code establishes a foundational duty of confidentiality, it also provides the necessary ethical framework that allows psychologists to comply with their legal obligations to report suspected abuse and neglect. See Standard 4.01 (Maintaining Confidentiality)¹⁰ and Standard 4.05(b)(Disclosures). Still, the specifics of what constitutes abuse, who must be reported, and within what timeframe are all defined at the state level. It is in navigating these state-specific statutes—which are actively evolving—that the true complexity lies.

Staying well-versed in mandatory reporting guidelines and keeping up to date on the changing laws is a fundamental professional responsibility. It is vital for psychologists to familiarize themselves with their state's specific laws, recognize the signs of abuse and neglect, and know when to take action. For a comprehensive overview of these critical areas, psychologists are encouraged to review this [full article on mandatory reporting relevant to psychologists \(/practice/legal/patient-confidentiality/mandatory-reporting\)](https://www.apaservices.org/practice/legal/patient-confidentiality/mandatory-reporting).

References

- ¹ Christian, S. (2025, April). *Defining and reporting child neglect: Recent state legislative activity*. Bipartisan Policy Center. Available at: <https://bipartisanpolicy.org/wp-content/uploads/2025/04/Child-Neglect-Issue-Brief.pdf> (PDF, 195KB) ↗ (<https://bipartisanpolicy.org/wp-content/uploads/2025/04/Child-Neglect-Issue-Brief.pdf>)
- ² Assemb. B. 2085, 2021-2022 Leg., Reg. Sess. (Cal. 2022).
- ³ H.B. 1, 2022 Leg., Reg. Sess. (Ky. 2022).
- ⁴ H.B. 569, 2021 Leg., Reg. Sess. (Miss. 2021).
- ⁵ H.B. 2866, 55th Leg., 1st Reg. Sess. (Ariz. 2021).
- ⁶ H.B. 1750, 93rd Gen. Assemb., Reg. Sess. (Ark. 2021) (narrowing the state's "failure to protect" statute to apply only to situations causing "serious bodily injury" when the harm is caused by a person who is not a family member.
- ⁷ California Welfare and Institutions Code § 300(b)(1).
- ⁸ H.B. 567, 87th Leg., Reg. Sess. (Tex. 2021) (amending the definition of neglect to require that a parent's action or inaction demonstrates a "blatant disregard" for the consequences and places a child in "immediate danger," which is a higher threshold than the previous standard of "substantial risk."
- ⁹ Conn. Gen. Stat. § 17a-101(c) (2021)
- ¹⁰ Connecticut Department of Children and Families. (n.d.). *Mandated reporter training*. Retrieved September 24, 2025, from https://portal.ct.gov/dcf/knowledge-base/articles/training/mandated-reporters/mandated-reporter-training?language=en_US ↗ (https://portal.ct.gov/dcf/knowledge-base/articles/training/mandated-reporters/mandated-reporter-training?language=en_US)
- ¹¹ American Psychological Association. (2017). *Ethical principles of psychologists and code of conduct* (2002, as amended 2016), available at: <https://www.apa.org/ethics/code/> (<https://www.apa.org/ethics/code/>)
- ¹² American Psychological Association. (2017). *Ethical principles of psychologists and code of conduct* (2002, as amended 2016). Available at: <https://www.apa.org/ethics/code/> (<https://www.apa.org/ethics/code/>)

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